

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUBC034724: NICOLLE L. LADIN vs AMERICAN HONDA MOTOR CO., INC., A
CALIFORNIA CORPORATION
08/27/2026 in Department 44
Motion to Tax Costs for Defendant**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant American Honda Motor Co., Inc.’s Motion to Strike or Tax Costs (*Opposed*)

Tentative Ruling:

Defendant American Honda Motor Co., Inc.’s Motion to Strike or Tax Costs is DENIED.

Plaintiff Nicolle L. Ladin’s Memorandum of Costs remains in the amount of \$5,815.39.

Plaintiff to give notice.

I. Background

Plaintiff filed the Complaint on December 18, 2024. Honda answered on February 3, 2025. According to Honda’s moving papers, on May 11, 2026, Plaintiff accepted Honda’s Code Civ. Proc. § 998 offer providing for repurchase of the vehicle, with Plaintiff’s attorney fees and costs to be determined by agreement or noticed motion. The Code Civ. Proc. § 998 offer and

2024CUBC034724: NICOLLE L. LADIN vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION

acceptance themselves are not contained in the presently submitted record. Plaintiff filed a Notice of Settlement of Entire Case on June 11, 2026.

On July 9, 2026, Plaintiff filed a verified Memorandum of Costs seeking \$5,815.39, consisting of \$602.25 in filing and motion fees; \$150 in jury fees; \$2,450.20 in deposition costs; \$160.50 in service-of-process costs; \$2,360.19 in expert-witness fees; and \$92.25 in electronic filing/service fees.

Honda filed the present motion on July 28, 2026. Honda seeks to strike the cost memorandum in its entirety or, alternatively, tax \$2,656.69: \$10.50 from Item 1; \$150 from Item 2; \$120.50 from Item 5; \$2,360.19 from Item 8(b); and \$15.50 from Item 14. Plaintiff opposed on August 14, 2026, and Honda replied on August 20, 2026.

II. Preliminary Matters

A. Discrepancy in the Filing/E-Filing Amounts Challenged

Honda seeks to tax \$10.50 from Item 1 and \$15.50 from Item 14 based on Plaintiff's May 22, 2025 filing responding to an OSC concerning proof of service and the June 11, 2026 Notice of Settlement. The underlying cost schedule, however, does not correspond to Honda's Item 14 figure.

The May 22 filing generated \$5.25 under Item 1 and \$10.25 under Item 14, for \$15.50 total. The June 11 settlement notice generated \$5.25 under Item 1 and \$11.00 under Item 14, for \$16.25 total. Thus, the two Item 1 entries do total the \$10.50 challenged by Honda, but the two Item 14 entries total \$21.25 (not \$15.50) and neither individual Item 14 entry is \$15.50.

The Court can nevertheless address the identified filings on the merits because Honda has sufficiently identified the two filings it challenges.

B. Plaintiff's Declaration in Opposition

The declaration submitted with Plaintiff's opposition contains an apparent copy-and-paste error. Attorney Sergio Cardenas identifies himself as counsel for "Plaintiff MAURO OILVA and EMERSON OLIVA," rather than Nicolle Ladin. The error diminishes the weight attributable to counsel's generic factual assertions. It does not, however, invalidate Plaintiff's verified cost memorandum or the case-specific invoices attached to it. Those materials provide independent documentary support for the challenged expenditures.

III. Discussion

A. Legal Standard: Motion to Tax Costs

Code Civ. Proc. § 1033.5 expressly permits filing, motion, and jury fees; specified service-of-process costs; and electronic filing/service fees where electronic filing or service is required or ordered by the court. (Code Civ. Proc. § 1033.5(a)(1), (4), (14).) Allowable costs

must be reasonably necessary to the conduct of the litigation and reasonable in amount. (Code Civ. Proc. § 1033.5(c)(2)-(3).)

The Song-Beverly Act provides that a prevailing buyer “shall be allowed” to recover the aggregate amount of “costs and expenses” reasonably incurred in connection with commencement and prosecution of the action. (Civ. Code § 1794(d).) The reference to “expenses” is broader than the items otherwise recoverable as statutory costs under Code Civ. Proc. § 1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.) Thus, although Code Civ. Proc. § 1033.5 generally excludes expert fees not ordered by the court “except when expressly authorized by law,” Civ. Code § 1794(d) supplies such independent statutory authority in a Song-Beverly action. (*Jensen*, supra, at 137-138.)

If an item on a verified cost memorandum appears proper on its face, the memorandum constitutes prima facie evidence of its propriety, and the moving party initially bears the burden of showing that the item was unnecessary or unreasonable. Once an item is properly put in issue, the claimant bears the burden of substantiating it. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266-1268.) Supporting invoices and other materials placing the expenditure in context may satisfy that burden. (*Jones*, supra, at 1266-1268.)

B. Honda Has Not Established a Basis to Strike the Entire Cost Memorandum

Honda first invokes Code Civ. Proc. § 1033(a), under which costs are discretionary in an unlimited civil case when “the prevailing party recovers a judgment that could have been rendered in a limited civil case.” The present record does not establish that predicate. Code Civ. Proc. § 85 currently limits a limited civil action to an amount in controversy not exceeding \$35,000. (Code Civ. Proc. § 85(a).)

Here, the Complaint alleged that the vehicle’s approximate sales-contract value was \$35,536.88 and additionally sought incidental and consequential damages and a civil penalty of up to twice actual damages. (Compl., ¶¶ 8, 32-34.) More importantly, the Code Civ. Proc. § 998 offer and acceptance are not before the Court, so the amount and precise nature of the judgment or settlement recovery cannot be determined from the present record.

Code Civ. Proc. § 1033(a) therefore does not provide a sufficient basis on this record to strike Plaintiff’s cost memorandum in its entirety.

C. Filing and Electronic Filing Fees (\$26.00 Requested Taxation)

Honda challenges filing and electronic filing expenses associated with Plaintiff’s May 22, 2025 response to the Court’s OSC concerning proof of service and the June 11, 2026 Notice of Settlement. Honda argues these costs were not incurred in connection with the “commencement and prosecution” of the action.

2024CUBC034724: NICOLLE L. LADIN vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION

The challenged charges should not be taxed. Filing and motion fees are expressly allowable under Code Civ. Proc. § 1033.5(a)(1). Electronic filing-service-provider fees are also expressly allowable where the court requires electronic filing. (Code Civ. Proc. § 1033.5(a)(14).) Ventura Superior Court made electronic filing mandatory for attorneys in unlimited and limited civil cases effective May 5, 2025, before both challenged filings occurred.

The fact that the May 22 declaration responded to an OSC concerning proof of service does not by itself establish that the modest filing charges were unnecessary or unreasonable. The document was filed in response to a court order and was directed toward maintaining and prosecuting the action. Likewise, the Notice of Settlement was a filing generated by the resolution of the litigation and necessary to advise the Court that the case had settled. Honda supplies no authority establishing that a prevailing Song-Beverly plaintiff cannot recover reasonable case-closing filing expenses incurred after the substantive settlement was reached.

Honda therefore has not established a basis to tax these amounts. The discrepancy between Honda's requested Item 14 amount and the actual entries in the cost memorandum provides an additional reason not to tax the requested \$15.50 as presented.

D. Jury Fee (\$150.00)

Honda's request to tax the \$150 jury fee is denied.

Code Civ. Proc. § 1033.5(a)(1) expressly identifies "jury fees" as allowable costs. Code Civ. Proc. § 631(b), in turn, requires at least one party demanding a jury on each side of a civil case to pay a nonrefundable fee of \$150. Code Civ. Proc. § 631.3(c) expressly provides that this Code Civ. Proc. § 631(b) fee "shall be nonrefundable and is not subject to" the refund provisions of Code Civ. Proc. § 631.3.

The cost memorandum shows precisely a \$150 jury fee incurred on May 19, 2025. Honda's reply therefore incorrectly relies on Code Civ. Proc. § 631.3(a) to argue that Plaintiff should have sought a refund after settlement. That provision does not apply to the \$150 nonrefundable fee imposed by Code Civ. Proc. § 631(b).

The \$150 jury fee is allowable and shall not be taxed.

E. Service of Subpoena on Santa Barbara Honda (\$120.50)

Honda next challenges the \$120.50 cost incurred to serve a subpoena and letter on Santa Barbara Honda because the contemplated deposition ultimately did not occur.

The cost records identify a \$120.50 charge incurred on April 3, 2025 for service of a "SUBPOENA, LETTER" on Santa Barbara Honda. The supporting invoice likewise identifies Santa Barbara Honda in Goleta as the recipient of the subpoena.

Service-of-process expenses are expressly allowable under Code Civ. Proc. § 1033.5(a)(4), subject to the requirements of that subdivision and the general requirements of necessity and

reasonableness. The discovery was facially related to the claims asserted: the Complaint is premised on repeated attempts to have an authorized Honda repair facility diagnose and repair the vehicle and specifically alleges that Plaintiff delivered the vehicle to an authorized Honda repair facility for repair of the alleged nonconformities. (Compl., ¶¶ 11-14, 27.)

That the deposition ultimately did not occur does not establish that serving the subpoena was unnecessary when undertaken. Discovery need not ultimately be used at trial to have been reasonably necessary to prosecution of the action, particularly where the case later settles. The \$120.50 amount is also not facially excessive.

The request to tax this item is therefore denied.

F. Expert Vehicle-Inspection Expense (\$2,360.19)

Honda's principal challenge is to Plaintiff's \$2,360.19 expert expense. Honda argues both that the amount is excessive and that the expense is categorically unrecoverable because the expert was not appointed by the Court.

The latter argument is foreclosed by *Jensen*. Although Code Civ. Proc. § 1033.5(b)(1) ordinarily excludes "[f]ees of experts not ordered by the court," that exclusion itself contains an exception when the fees are "expressly authorized by law." Civ. Code § 1794(d) is such an authorization. *Jensen* held that the Song-Beverly Act's allowance for "costs and expenses" permits a prevailing buyer to recover expert-witness expenses even though the expert was not court ordered, subject to the trial court determining whether the expense was reasonably incurred. (*Jensen*, supra, at 137-138.) *Warren* likewise confirms that the Legislature intended "costs and expenses" under Civ. Code § 1794(d) to encompass litigation expenses outside the detailed definition of statutory costs in Code Civ. Proc. § 1033.5. (*Warren*, supra, at 42.)

The remaining question is therefore reasonableness, not categorical recoverability.

Plaintiff supplied a case-specific invoice from S&S Legal Consultants dated April 24, 2026. The invoice identifies this case, the 2024 Honda HR-V and its VIN, and itemizes:

- Four hours of vehicle inspection at \$275 per hour: \$1,100;
- Seven hours of travel at \$115 per hour: \$805;
- One hour of document intake/review at \$210: \$210; and
- Hotel reimbursement: \$245.19.

The total is \$2,360.19.

Although Plaintiff's counsel's supporting declaration contains the party-name error noted above, the verified cost memorandum and the case-specific invoice independently substantiate the nature and amount of the expenditure. (See *Jones*, supra, at 1266-1268.) Honda does not submit

2024CUBC034724: NICOLLE L. LADIN vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION

contrary evidence concerning prevailing expert rates, identify a comparable expert who could have performed the inspection at materially lower cost, or otherwise demonstrate that the invoiced charges are excessive. Indeed, Honda's own moving papers acknowledge that Honda's expert was also present at the vehicle inspection, further demonstrating that an expert inspection was a legitimate litigation event rather than an unrelated or merely convenient expenditure.

Given that the condition and alleged defects of the vehicle were central issues in this Song-Beverly action, the inspection and associated preparation and travel were reasonably related to prosecution of the case. The amounts shown are not facially unreasonable.

The request to tax the \$2,360.19 expert expense is therefore denied.